

২০
বাংলাদেশ সুপ্রীমকোর্ট
হাইকোর্ট বিভাগ

আপীল সম্পর্কিত
ফৌজদারী

জেলা -NARAIL

ফৌজদারী কার্যবিধি আইনের ধারার অধীনের রিভিশন
নং

Md. Jahidul Molla আবেদনকারী
মাধ্যম Mr. Sheik Shamim Ahmed, Adv.

বনাম

The State

প্রতিপক্ষ

Mr. Mohammad Taifoor Kabir, DAG with Mr. Md. Lokman Hossain and Mr. Md. Hatem Ali, AAG

প্রথম আদালত

ম্যাজিস্ট্রেট,

তারিখ

২০

শাস্তি ও দন্ডদেশ

Present:
Mr. Justice Mamnoon Rahman

আপীল আদালত

তারিখ

২০

কগজপত্র বা আদেশের ক্রমিক নং	তারিখ	নোট এবং আদেশ	স্বাক্ষর
01	<u>18.01.2024</u>	In preferring the Criminal Revision under section 439 and read with Section 435 of the Code of Criminal Procedure there had been a delay of 149 days for which the petitioner filed an application under section 5 of the Limitation Act. Considering the facts and circumstances, the delay of 149 days in filing the revision is hereby condoned subject to any just objection raised by the opposite-party at the time of disposal of the rule. Let the records of the case be called for and a rule be issued calling upon the opposite party to show cause as to why the judgment and order of conviction and sentence dated 18.06.2023 passed by the learned Court of Additional Session Judge 2nd Court, Narail in Criminal Appeal No. 79 of 2022 by disallowing the appeal and thereby affirming the judgment and order of conviction and sentence dated 08.05.2022 passed by	

the learned Senior Judicial Magistrate, 1st Court, Narail in Narail Police Station Case No.15 dated 13.07.2018 corresponding to G.R. Case no. 265 of 2018 convicting the accused-appellant-petitioner under Section 19(1) table no 9(Ka)/19(4) of the Madok Drabbaya Niyontron Ain, 1990 and sentencing him to suffer rigorous imprisonment for 06 (six) months and to pay a fine of Tk.2,000/- and in default to suffer simple imprisonment for a period 1(one) month more, should not be set aside, and/or pass such other or further order or orders as to this Court may seem fit and proper.

The Rule is made returnable within 4(four) weeks from date.

Pending hearing of the rule, let the accused petitioner, namely **Md. Jahidul Molla**, son of late **Rostam Molla** be enlarged on ad-interim bail till disposal of the instant rule, subject to furnishing bail bond to the satisfaction of the learned Chief Judicial Magistrate, Narail.

Let the realization of fine be stayed.

The petitioner is directed to put in the requisites forthwith.

(Mamnoon Rahman, J)

		In preferring the Criminal Revision under section 439 and read with Section 435 of the Code of Criminal Procedure there had been a delay of 283 days for which the petitioner filed an application under section 5 of the Limitation Act. Considering the facts and circumstances, the delay of 283 days in filing the revision is hereby condoned subject to any just objection raised by the opposite-party at the time of disposal of the rule.
--	--	--